

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 23-006
Amendments to Title 10, Chapter 2, Sections 10-202 and 10-203
of the Chickasaw Nation Code
(Consolidated Governmental Budget)

PASSED

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, Title 10, Chapter 2, Sections 10-202 and 10-203 of the Chickasaw Nation Code define and determine the contents of the Consolidated Governmental Budget,

WHEREAS, it is desirable to simplify the budgetary process for the Chickasaw Tribal Legislature as well as for the Executive Department by further defining the contents of the Consolidated Governmental Budget.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 10, Chapter 2, Sections 10-202 and 10-203 of the Chickasaw Nation Code, all other sections to remain the same (additions are shown in red, deletions are stricken through):

“SECTION 10-202 CONSOLIDATED GOVERNMENTAL BUDGET FORMULATION

A. Each year the Consolidated Governmental Budget shall be formulated. This budget shall contain the budgeted annual expenditures from the general fund, ~~enterprise fund~~ and trust funds (Tribal Budget) for the Executive, Legislative and Judicial Departments of government. The budget shall identify the individual sources of funds and expenditures for each branch of government. Said sources of revenue may be based upon estimates and/or projections. The budgeted expenditures formulated as provided for in this section shall not exceed total estimated revenues plus any reserves which are not restricted. Approval of the budget by the Legislature, in accordance with Article VII, Section 9 of the Constitution, approves the expenditure of those funds subject to their availability.

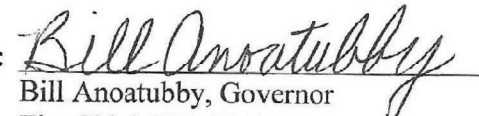
SECTION 10-203 CONSOLIDATED GOVERNMENTAL BUDGET FORMULATION

C. Unincorporated enterprises of the Chickasaw Nation are required to ~~include~~ provide each year, as a part of supplement to the Consolidated Governmental Budget, a financial ~~budget~~ plan for the upcoming year. The plan is management’s best estimate of revenues and expenditures for the period covered by the plan. It is recognized that as demands for services rise, so do costs. It is also recognized that opportunities for new business arise and, as the business climate changes, changes to the financial budget plan will occur. Changes during the year require the approval of the Governor.”

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on June 16, 2006, by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUN 16 2006



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Explanation: This resolution amends Title 10, Chapter 2, Sections 10-202 and 10-203 of the Chickasaw Nation Code by separating the financial plan of Chickasaw Enterprises from the Consolidated Governmental Budget and making it a supplement to the Consolidated Governmental Budget. Such amendments would simplify the budgeting process for both the Executive and Legislative Departments.

Requested by: Bill Anoatubby, Governor

Presented by: Linda Briggs, Committee Chair
Finance Committee